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Legislators Across California Try to Fix The Housing Crisis

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Author: Richard Procter | Section: Housing | 1083 Words
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There are not enough places here for people to live.

"Here" can mean San Francisco, California, or the United States. All three have far too many homeless residents (i.e. any) and all three have done a piss poor job of solving the problem. Fixing the problem (instead of hiding or ignoring the problem) requires building more. Many people have had many ideas about how to go about doing so. The most recent significant stab at something approaching a solution was Senate Bill 50, legislation authored by State Senator Scott Wiener, which would have required cities to build denser housing near transit. Lots of stakeholders had strong opinions about the bill, one way or another. Some affordable housing advocates saw the bill as a good way to get more units built, period. Some critics thought it would increase the risk of gentrification in some areas. The bill died recently, failing to pass by just a few votes. Because of its scope, it was one of the more ballyhooed housing bills in recent memory. With SB 50 down and out for another year, what's a body got to look forward to on the housing front in 2020?

It's a big problem

A 2016 report by consulting firm McKinsey & Company estimated that California should build 3.5 million more homes by 2025. While not everyone agrees with this projection, it's become a commonly enough cited number that Governor Gavin Newsom made it part of his administration's goals. Making more houses has proven particularly difficult in San Francisco, where the UC Berkeley Terner Center for Housing Innovation estimates that it takes, on average, 3.8 years for a development of more than 10 units to get properly permitted. The same center estimates an average total development time of 6.3 years. Suffice to say, nothing about the housing crisis is quick.

Nick Josefowitz is the director of policy at SPUR, a San Francisco-based nonprofit think tank focused on urban planning. There's no easy way out of the housing affordability crisis, he tells SF Weekly. The failure of Wiener's SB 50 was disappointing.

"It was the type of bold step that we needed to take as a state anda s a region to start making progress on... the housing affordability crisis," Josefowitz says. "We have, as a region, not built enough housing to house the people that live here for over a generation. So it's unrealistic to expect that we can just snap our fingers and get out of it."

With the death of SB 50, it's back to the drawing board for Wiener, for whom housing reform is still a priority. Wiener noticed the housing crisis when he first moved to San Francisco in 1997. He continued to run into indirect and direct manifestations of the problem over the next few years, he tells SF Weekly.

"When I got involved at the neighborhood level," he says, "there was one project that was entirely within zoning [regulations]. It went through 50 — five zero — community meetings. It took three to four years to get approved. Why are we doing it this way? Why are we making it so hard?"

It's hard to pass meaningful housing legislation in San Francisco, and it's hard to pass at the state level as well. While experts say an "us versus them" dynamic is not accurate (or helpful), California's sheer size can make it hard for lawmakers to build consensus, as the variation in priorities from the largest cities to smallest towns can be great. A look at some housing legislation trying to make its way to the governor's desk shows lawmakers from both Northern and Southern California trying to make a dent in the crisis.

SB 773

This bill, authored by State Senator Nancy Skinner (D-Berkeley), corrects some problems with accessory dwelling unit (ADU) laws passed last year.

SB 795

Authored by Jim Beall (D-San Jose), this would create a redevelopment agency-like fund for local governments.

AB 725

This bill, from Assemblymember Buffy Wicks (D-Oakland), would require certain jurisdictions to zone some areas for homes aimed at middle class residents.

AB 953

ADUs are an attractive part of the housing crisis solution because there are lots of folks that would like to build an ADU on their property. Unfortunately, the permitting process can be lengthy and expensive. AB 953, by Phil Ting (D-San Francisco), would streamline the permitting process: If a local agency hasn't said boo about your ADU application in 60 days, consider it approved.

AB 1279

Imagine SB 50, but affecting only "high-source areas" (read: rich neighborhoods) and with smaller buildings than proposed in Wiener's bill. That's roughly what Asseumblymember Richard Bloom (D-Santa Monica) wants to accomplish with this bill.

AB 1905

Assemblymember David Chiu's (D-San Francisco) bill would get rid of a tax deduction for homeowners' mortgages on houses they own other than their primary residence (i.e. vacation homes).

AB 2058

This bill, from Assemblymember Jesse Gabriel (D-San Fernando Valley), would give tax breaks to owners of affordable housing developments if they keep them as affordable housing.

Wiener would not go into specifics about future housing legislation efforts, but did tell SF Weekly that he and his office are working on something that would make it easier for churches and charitable institutions to build affordable housing on their excess land.

In San Francisco, Mayor London Breed has decided to take another stab at increasing the amount of affordable housing in San Francisco. You may remember the mayor from previous housing adventures like last summer, where she sparred with the Board of Supervisors about affordable housing for teachers.

Her newest proposal would change the entitlement process, making it easier for projects that are either 100 percent affordable housing or that have 15 percent more affordable units than otherwise required by the city. The measure needs 50,000 signatures by July 6 to appear on the November 2020 ballot. Josefowitz sees this as the kind of bold step that could help make a difference in the housing crisis.

"This measure goes to the very root of the problem and changes the [city] charter to make it easier to build housing," he says.

The housing crisis won't get solved quickly, but at least legislators and politicians like Breed have glommed on to the fact that it's a major problem for their constituents.

"It's a problem that at its core is man made," Josefowitz says. "We have, over decades, put in place the barriers and the walls that are preventing us from being able to deliver enough housing that's affordable for the Bay Area. We don't have to accept that. We can change that, we can create a different future."

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